

Nawab Hasan v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 2 December 2019 · WRIT-C No. 39253 of 2019 · WRIT - C No. 39253 of 2019 · **Writ disposed; Executive Engineer to hear objection and pass a speaking final order; coercive recovery stayed; liberty to appeal under Section 127 of the Electricity Act, 2003.**

HEADNOTE

A consumer challenged a recovery certificate as coercive action taken without hearing and without following the U.P. Electricity Supply Code, 2005. The Court did not quash the citation or decide the Supply Code plea. It directed the petitioner to appear before the Executive Engineer with his existing objection, required a speaking final order within four weeks, stayed coercive action in the meantime, and left any challenge to that final order to an appeal under Section 127 of the Electricity Act, 2003.

FACTUAL SUMMARY

Nawab Hasan petitioned the Allahabad High Court to quash a recovery certificate dated 11 September 2019 issued by the Executive Engineer (respondent no. 2) and to restrain recovery of the amount demanded. He alleged that the respondents were taking coercive action without giving him an opportunity of hearing and without following the Uttar Pradesh Electricity Supply Code, 2005. An objection had already been filed. Counsel for the electricity department was heard.

HOLDING-UNITS

HOLDING-UNIT · EA2003::127

recovery certificate — hearing, final order, and Section 127 appeal

HOLDING

Without examining whether the recovery certificate of 11.09.2019 was issued without hearing or in breach of the Supply Code, the Court disposed of the writ by directing the petitioner to appear before the Executive Engineer on 17.12.2019 with his already-filed objection and evidence; requiring a speaking and reasoned final order within four weeks; staying coercive action for seven weeks or until disposal of the objection, whichever was earlier; and leaving any challenge to that final order to an appeal under Section 127 of the Electricity Act, 2003. Non-appearance on the date fixed would revive the recovery citation automatically. ¶ 1

PRINCIPLE TAGS

final-assessment-order-relegates-assessee-to-section-127-appeal

After directing the Executive Engineer to pass a speaking final order on the petitioner's objection to the recovery certificate, the Court left any further challenge to that order to a statutory appeal under Section 127. ¶ 1

relegation-to-section-127-appeal-on-merits-limitation-not-examined

The Court did not decide the merits of the demand or the Supply Code hearing plea; it remitted the objection for a final order and pointed the petitioner to Section 127 if still aggrieved. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE RECOVERY CERTIFICATE OF 11.09.2019 WAS ISSUED WITHOUT HEARING OR IN BREACH OF THE U.P. ELECTRICITY SUPPLY CODE, 2005

The Court took a lenient view and remitted the existing objection to the Executive Engineer without deciding the Supply Code challenge. ¶ 1

NOT DECIDED — MERITS AND QUANTUM OF THE DEMAND UNDERLYING THE RECOVERY CERTIFICATE

¶ 1

